

Drugs And Magic Remedies Act

Title: Definition of Advertisement under the Drugs and Magic Remedies Act

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 2(a)

Plain English Summary:

Advertisement म्हणजे फक्त newspaper किंवा online promotion नाही. Notice, circular, label, wrapper, document तसेच oral announcement किंवा light, sound किंवा smoke द्वारे केलेली घोषणा यांचाही advertisement मध्ये समावेश होतो. त्यामुळे Ayurvedic product चे label, packaging, social media promotion आणि verbal claims यावरही हा कायदा लागू होऊ शकतो.

The Exact Legal Text:

“advertisement” includes any notice, circular, label, wrapper, or other document, and any announcement made orally or by any means of producing or transmitting light, sound or smoke;

Keywords/Triggers:

advertisement definition, Ayurvedic product advertisement, product label, packaging claim, promotional notice, oral advertisement, social media advertisement, DMROA Section 2(a)

Title: Definition of Drug under the Drugs and Magic Remedies Act

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 2(b)

Plain English Summary:

या Act मध्ये drug चा अर्थ फक्त medicine एवढाच मर्यादित नाही. Human किंवा animal साठी वापरले जाणारे medicine, disease च्या diagnosis किंवा treatment साठी वापरले जाणारे substance, शरीराच्या structure किंवा organic function वर परिणाम करणारे article आणि medicine मधील component यांचा देखील drug मध्ये समावेश होतो.

The Exact Legal Text:

“drug” includes—

(i) a medicine for internal or external use of human beings or animals;

(ii) any substance intended to be used for or in the diagnosis, cure, mitigation, treatment or prevention of disease in human beings or animals;

(iii) any article, other than food, intended to affect or influence in any way the structure or any organic function of the body of human beings or animals;

(iv) any article intended for use as component of any medicine substance or article, referred to in sub-clauses (i), (ii), and (iii);

Keywords/Triggers:

drug definition, Ayurvedic medicine, herbal product, treatment substance, disease cure claim, medicine component, DMROA Section 2(b)